

Budhram v. State of U.P. — tubewell dues recovery

High Court of Judicature at Allahabad · Division Bench · 29 March 2012 · WRIT - C No. - 15488 of 2012 · **Writ disposed; produce receipts, department to adjust and correct bills.**

HEADNOTE

A writ challenging recovery of tubewell electricity dues for alleged non-adjustment of payments was disposed of without deciding the bill: if the consumer produces payment receipts within a week, the licensee shall adjust those payments and correct the bills in accordance with the U.P. Electricity Supply Code, 2005. The consumer had not annexed the current bills and had admittedly consumed electricity.

FACTUAL SUMMARY

The petitioner had a 7.5 HP tubewell connection. He challenged recovery of Rs. 1,90,025 as electricity dues under the U.P. Government Electricity Undertakings (Recovery of Dues) Act, 1958, claiming payments had not been adjusted. He annexed two Rs. 5,000 receipts of April 2008 and cited older payments from 1992–2006, but did not annex the current bills underlying the recovery. He had admittedly consumed the electricity. U.P. Power Corporation's counsel offered to verify and correct the bill under the Supply Code, 2005 if payment details were produced.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

bill correction on production of payment receipts

HOLDING

Where a consumer challenges recovery of electricity dues alleging unadjusted payments but does not annex the current bills and has admittedly consumed electricity, the writ may be disposed of with a direction that if payment receipts are produced within a week, the licensee shall verify, adjust those payments and correct the bills in accordance with the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ challenging recovery of tubewell electricity dues for alleged non-adjustment of payments was disposed of without deciding the bill: if the consumer produces payment receipts within a week, the licensee shall adjust those payments and correct the bills in accordance with the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE RS. 1,90,025 RECOVERY

The Court did not decide whether historical payments were unadjusted or the period of the demand; bill correction was left to departmental verification on production of receipts. ¶ 1